



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2206: SNAP; error rate; forensic audit

KUPPER FLOOR AMENDMENT

1. Requires DES to submit a quarterly report to the Legislature within 30 days after the end of the quarter that details the monthly progress towards reducing the payment error rate and includes strategies and barriers that may be present in reducing the payment error rate.
2. Removes oversight of the Auditor General regarding implementation of the corrective plan.
3. Requires, by November 15, 2027, the Auditor General to complete a special audit which will determine what factors contributed to the payment error rate and include recommendations to reduce the payment error rate.
4. Allows the Auditor General to request DES submit a written status report on their implementation of the special audit recommendations.

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2206
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 46, chapter 2, article 2, Arizona Revised
3 Statutes, is amended by adding section 46-232, to read:

4 46-232. Payment error rate; reduction; quarterly reports;
5 requirements; auditor general

6 A. ON OR BEFORE DECEMBER 30, 2030, THE DEPARTMENT SHALL REDUCE THE
7 SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM'S PAYMENT ERROR RATE AS REPORTED
8 BY THE UNITED STATES DEPARTMENT OF AGRICULTURE TO NOT MORE THAN THREE
9 PERCENT.

10 B. BEGINNING IN FISCAL YEAR [2027-2028] [2026-2027] AND EACH FISCAL
11 YEAR THEREAFTER, THE DEPARTMENT SHALL SUBMIT [AN ANNUAL] [A QUARTERLY]
12 REPORT TO THE LEGISLATURE [BY DECEMBER 31] [WITHIN THIRTY DAYS AFTER THE
13 END OF THE QUARTER] THAT DETAILS THE DEPARTMENT'S [MONTHLY] PROGRESS
14 TOWARDS REDUCING THE PAYMENT ERROR RATE AND THAT INCLUDES STRATEGIES AND
15 BARRIERS THAT MAY BE PRESENT IN REDUCING THE PAYMENT ERROR RATE.

16 C. IF THE DEPARTMENT FAILS TO MEET ANNUAL INTERIM TARGETS
17 ESTABLISHED BY RULE OR THE FINAL TARGET AS PRESCRIBED IN SUBSECTION A OF
18 THIS SECTION, THE DEPARTMENT SHALL:

19 1. SUBMIT A CORRECTIVE ACTION PLAN TO THE LEGISLATURE WITHIN SIXTY
20 DAYS THAT INCLUDES AN ANALYSIS OF WHY THE TARGETS WERE NOT MET AND
21 TIMELINES FOR CORRECTING THE PAYMENT ERROR RATE.

22 2. PAY FIFTY PERCENT OF ANY FEDERAL LIABILITIES THAT MAY BE IMPOSED
23 DUE TO THE EXCESS PAYMENT ERROR RATES. THE REMAINING FEDERAL LIABILITIES
24 SHALL BE PAID FROM THE STATE GENERAL FUND.

25 3. IMPLEMENT A CORRECTIVE PLAN [UNDER THE OVERSIGHT OF THE AUDITOR
26 GENERAL]. IF THE DEPARTMENT FAILS TO COMPLY WITH THE CORRECTIVE PLAN, THE
27 DEPARTMENT'S ADMINISTRATIVE FUNDING SHALL BE REDUCED BY TEN PERCENT UNTIL
28 RESOLVED.

1 D. ON OR BEFORE ~~[DECEMBER 30, 2031]~~ [NOVEMBER 15, 2027], THE
2 AUDITOR GENERAL SHALL COMPLETE A ~~[FORENSIC]~~ [SPECIAL] AUDIT. THE
3 ~~[FORENSIC]~~ [SPECIAL] AUDIT SHALL DETERMINE WHAT FACTORS CONTRIBUTED TO THE
4 PAYMENT ERROR RATE AND SHALL INCLUDE RECOMMENDATIONS TO REDUCE THE PAYMENT
5 ERROR RATE. THE DEPARTMENT SHALL IMPLEMENT THE RECOMMENDATIONS WITHIN
6 TWELVE MONTHS AFTER RECEIVING THE RECOMMENDATIONS FROM THE AUDITOR GENERAL
7 UNLESS THE RECOMMENDATIONS ARE WAIVED BY THE JOINT LEGISLATIVE AUDIT
8 COMMITTEE. [THE AUDITOR GENERAL MAY REQUEST THAT THE DEPARTMENT SUBMIT A
9 WRITTEN STATUS REPORT ON THE DEPARTMENT'S IMPLEMENTATION OF THE SPECIAL
10 AUDIT RECOMMENDATIONS.]

11 E. IF THE DEPARTMENT CORRECTS THE PAYMENT ERROR RATE AHEAD OF
12 SCHEDULE, THE LEGISLATURE MAY ALLOCATE ADDITIONAL FUNDING FOR PROGRAM
13 IMPROVEMENTS.

14 Sec. 2. Delayed repeal

15 Section 46-232, Arizona Revised Statutes, as added by this act, is
16 repealed from and after December 31, 2032.

17 Sec. 3. Short title

18 This act may be cited as the "Oh SNAP Act".

19 Enroll and engross to conform

20 Amend title to conform

NICK KUPPER

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